

HOUSE BILL 1708

By Capley

AN ACT to amend Tennessee Code Annotated, Title 55,
Chapter 4; Title 55, Chapter 50 and Title 65,
Chapter 15, relative to motor vehicles.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-50-322, is amended by adding the following as a new subsection (k) and redesignating the existing subsection (k) as subsection (l):

(k)

(1)

(A) If an applicant for a driver license or intermediate driver license is unable to speak and read the English language, then the applicant may be administered the written examination in a language other than English pursuant to this subdivision (k)(1).

(B) If the department issues a driver license or intermediate driver license pursuant to subdivision (k)(1)(A), the license must be a restricted license that is non-renewable, valid for only one (1) year, and granted for the limited purposes of travelling to and from an educational institution during the institution's regular hours, if the applicant is enrolled at an educational institution; to and from and working at the applicant's regular place of employment; and to and from the applicant's medical appointments.

(C) Upon expiration of the restricted license issued pursuant to this subdivision (k)(1), to obtain a driver license or intermediate driver

license, the applicant shall retake only the written examination and it must be administered to the applicant in English only. The applicant shall not use a translation dictionary, an electronic device, or an interpreter to assist with the administration of the re-examination.

(2) Subdivision (k)(1) does not apply to an applicant who is unable to speak the English language sufficiently, is capable of reading and writing in the English language, and presents a written statement from a physician that the applicant has a hearing impairment that impacts the applicant's ability to speak the English language sufficiently.

SECTION 2. Tennessee Code Annotated, Title 55, Chapter 4, Part 1, is amended by adding the following as a new section:

55-4-144.

(a) The commissioner of revenue or a county clerk shall not process an application for initial issuance or renewal of registration of a motor vehicle until the applicant provides documentation, whether in paper or electronic format, that the applicant is:

- (1) A citizen of the United States;
- (2) A lawful permanent resident of the United States; or
- (3) A person whose presence in the United States has been authorized by the federal government for a specific purpose and for a specified period of authorized stay.

(b) A Tennessee driver license or Tennessee photo identification license constitutes satisfactory proof of subdivision (a)(1), and a Tennessee temporary driver license or Tennessee temporary photo identification license constitutes satisfactory proof of subdivision (a)(2) or (a)(3).

(c) For purposes of this section, acceptable electronic formats include display of electronic images on a cell phone or any other type of portable electronic device.

(d) Every registration or renewal of registration must be accompanied by the following notice:

THE OWNER AND/OR OPERATOR OF THIS VEHICLE IS REQUIRED
TO BE A UNITED STATES CITIZEN, LAWFUL PERMANENT RESIDENT, OR
TEMPORARY LAWFUL RESIDENT PURSUANT TO TENNESSEE CODE
ANNOTATED, § 55-4-144.

SECTION 3. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.